

TENTATIVE RULING

Case: **Capital One N.a. v. Garcia**
 Case No. CV2025-0082

Hearing Date: **September 9, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Capital One N.a.’s unopposed motion to vacate dismissal and enter judgment under terms of stipulated agreement is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 664.6.) Based on defendant Pamela Garcia’s answer, she is represented by counsel. (Answer [filed February 18, 2025], p. 1.) However, plaintiff did not serve this motion on defendant’s counsel. (Cal. Rules of Court, rules 1.21(a) [“Whenever a document is required to be served on a party, the service must be made on the party’s attorney if the party is represented”], 2.251(c); YCR 7.2; see also Code Civ. Proc., §§ 1005, subd. (b), 1010.6; see Plaintiff’s Proof of Service [filed July 29, 2026], p. 2.)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sarkis v. Yolo County Public Agency Risk Management Insurance Authority et al.**

Case No. CV2024-2614

Hearing Date: **September 9, 2026** **Department Fourteen** **9:00 a.m.**

Defendants' motion for attorneys' fees:

Plaintiff Armond Sarkis' ("plaintiff") request for judicial notice in support of opposition is **DENIED**. (Evid. Code, §§ 452, subd. (d), 453.) The documents are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

The Court declines to rule on plaintiff's evidentiary objections as the Court did not consider the challenged declaration or exhibits when ruling on this motion.

Plaintiff's conditional request to present limited oral testimony is **DENIED** as unnecessary. (Cal. Rules of Court, rule 3.1306(b).)

Defendants Yolo County Public Agency Risk Management Insurance Authority ("YCPARMIA") and Jill Renee Perez ("Perez") (collectively, "defendants") motion for attorneys' fees pursuant to Government Code section 12965 is **DENIED**. (Govt. Code, § 12965, subd. (c)(6).) Government Code section 12965(c)(6) authorizes an award of attorney fees to the prevailing party in any action brought under Fair Employment and Housing Act ("FEHA") (Govt. Code, § 12940 et seq.) A prevailing defendant shall not be awarded fees unless the court finds that the action was frivolous, unreasonable, or groundless when brought, or the plaintiff continued to litigate after it clearly became so. (*Ibid.*; *Cummings v. Benco Building Services* (1992) 11 Cal.App.4th 1383, 1386; *Williams v. Chino Valley Independent Fire Dist.* (2015) 61 Cal.4th 97, 101; *Rosenman v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro* (2001) 91 Cal.App.4th 859, 874.) The Court finds that the action was not frivolous, unreasonable, or groundless when brought, nor did plaintiff continue to litigate after it clearly became so. (*Ibid.*)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Defendants' motion for costs:

Plaintiff's request for judicial notice in support of opposition is **DENIED**. (Evid. Code, §§ 452, subd. (d), 453.) The documents are not relevant to the Court's determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.)

The Court declines to rule on plaintiff's evidentiary objections as the Court did not consider the challenged declaration or exhibits when ruling on this motion.